MOONBACK INVESTMENTS (PRIVATE) LIMITED
versus
NANCY KASIRORI
and
PARADZAI KAZINGIZI
and
WITNESS HARINOPINDA
and
KING MAKOSA
and
LASTON GUMBATO
And
CHENJERAI MURAMBIZA
and
VIOLATE MASVARIRA
and
CHENAI MUCHIRERWA
and
THINGMORE VHUNDURA
And
CHRISTOPHER SOSONI
and
GARIKAI MANDEBVU
and
PENSISTER KHUMALO
and
DUBE MANDELA
and
VALENTINE HARINOPONDA

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE: 5 and 9 March 2026

Opposed Application

Makorokotera with him L.S. Garakara, for the applicant

N. Chiota, for the respondents

M AMBARA J:

[1] This is an opposed court application for eviction. The applicant seeks the eviction of all the respondents and those claiming occupation through them from Subdivision 1 of the Remainder of Arnold Farm, Mazowe.

[2] The present decision is confined to preliminary and dispositive procedural objections: whether the matter is properly before the court on the papers as filed, and whether the court can competently determine the relief sought without the joinder of a necessary party. I do not determine the substantive merits of any competing right to occupy.

[3] The applicant alleges that the respondents "invaded and occupied" the applicant's land. No date, period, or approximate timeframe of the alleged invasion/commencement of occupation is pleaded in the founding affidavit.

[4] The respondents, for their part, deny invasion; they assert long-standing settlement (circa 2000); and they rely on prior High Court orders HC 2592/17 and HC2513/17 granted by consent against, inter alia, the Minister responsible for Lands and other State office-holders, restraining participation in demolition and unlawful eviction on Arnold Farm.

[5] The point is taken that the applicant's omission to plead when the invasion or occupation occurred is not a mere technicality. It is a material averment in an eviction application brought by court application. Under rule 59(1) of the High Court Rules, 2021, a court application must be supported by affidavits that set out the facts upon which the applicant relies.

[6] It is trite in our law that an application stands or falls on the founding affidavit. The founding affidavit must fully set out the cause of action; new matter cannot be used to cure a defective founding case.

[7] I am mindful that, in land matters, the Supreme Court in Commercial Farmers Union and 9 Ors v Minister of Lands and 6 Ors, 2010 (2) ZLR 576 (S);(SC31/10) has recognised that holders of tenure documents (offer letters, permits, land settlement leases) may approach the courts for eviction of illegal occupiers and should not resort to self-help.

[8] That proposition, however, does not relieve an applicant of the duty to plead the material facts that enable the respondent to know the case to meet and enable the court to discharge its constitutional function. Section 74 of the Constitution prohibits eviction from a home without a court order made after considering all relevant circumstances. The Supreme Court has emphasised that the court seized with an eviction dispute must consider "all the relevant circumstances" and undertake a balancing exercise of the rights and interests implicated. See

Zimbabwe Homeless People's Federation and 7 Ors v Minister of Local Government and National Housing and 3 Ors, SC94/20.

[9] The circumstances that are "relevant" in an eviction dispute commonly include the nature of occupation, the duration of residence, and what alternative accommodation (if any) is available—precisely because section 74 is concerned not only with formal legality but with protection against arbitrariness after a judicial evaluation of context.

[10] In the present matter, the date (or at least the approximate period) when occupation commenced is central to that enquiry. It bears directly on the respondents' asserted length of residence, the respondents' reliance on the earlier interdict, and the court's assessment of "all relevant circumstances". The omission leaves the respondents to guess whether the applicant's case is that they are recent invaders, long-settled occupants, or something else. That is inconsistent with the motion-proceedings requirement of a clearly pleaded cause of action.

[11] The applicant's stance in answer—that the question of "when" the respondents occupied is "immaterial"—cannot be accepted in light of section 74. If anything, the Constitution makes context material. The court cannot responsibly consider "all relevant circumstances" while being asked to treat the duration and genesis of occupation as irrelevant.

[12] I turn to joinder. The respondents place reliance on an extant High Court orders in HC 2592/17 and HC 2513/17 that, on their face, bind the Minister responsible for Lands (as cited in those matters) and restrain participation in demolition and unlawful eviction on Arnold Farm. The respondents further contend that the Minister is obliged to provide alternative land before their removal. Whether that contention is ultimately well-founded is not the point today; what matters is that the interdict is invoked and is said to bear on eviction and demolition on the very farm in issue.

[13] The Minister is not cited in these proceedings. Yet the relief sought, if granted, would be granted in a factual and legal context where (a) the respondents invoke orders binding the Minister, and (b) the applicant's own tenure derives from the State's land administration framework. As a minimum, the court would be drawn into interpreting the scope and effect of an extant interdict binding the Minister, and potentially making orders whose implementation would implicate the Minister's legal duties and exposure to contempt risk. Such a party has a direct and substantial legal interest in the outcome.

[14] Rule 32(12)(b) of the High Court Rules, 2021 empowers the court—of its own initiative or on application—to join a person "whose presence before the court is necessary to ensure

that all matters in dispute … may be effectually and completely determined and adjudicated upon."

[15] Appellate authority confirms that non-joinder is not invariably fatal, and that the remedy lies in joinder where appropriate. See Daniso Wakatama and Ors v Madamombe, SC10/12

[16] But the court retains the duty not to determine issues in a manner that prejudicially affects the rights and obligations of absent persons whose presence is necessary for a complete adjudication. In this matter, joinder is not a mere formal nicety. The ministerial interest arises from extant court orders and from the land governance matrix that underpins the competing claims. The applicant did not seek joinder, did not serve the Minister, and did not address—on the founding papers—how the earlier orders are to be reconciled with the relief sought.

[17] These defects—individually serious and cumulatively decisive—mean that the matter is not ripe for determination on the opposed roll. See Moyo v Bowman and Ors, HH 204/15. The founding papers do not plead essential facts (including when occupation commenced), and the non-joinder of a necessary party prevents an effectual and complete adjudication. In circumstances of cumulative procedural defect and patent incompleteness of the founding case, the appropriate disposition is to strike the matter off the roll rather than to purport to decide it on an imperfect procedural footing.

In the result, it is ordered as follows;

The application is struck off the roll with costs on the ordinary scale.

MAMBARA J: …….

Sinyoro & Partners, applicant's legal practitioners

DNM Attorneys, respondents' legal; practitioners